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Public Law 117–52
117th Congress

An Act

To provide an extension of Federal-aid highway, highway safety, and transit programs, and for other purposes.

Oct. 31, 2021
[H.R. 5763]

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

Further Surface Transportation Extension Act of 2021.
23 USC 101 note.

SECTION 1. SHORT TITLE.

This Act may be cited as the "Further Surface Transportation Extension Act of 2021".

SEC. 2. AMENDMENT TO THE EXTENSION END DATE.

Section 2(2) of the Surface Transportation Extension Act of 2021 (Public Law 117–44) is amended by striking "October 31, 2021" and inserting "December 3, 2021".

Ante, p. 382.

SEC. 3. AMENDMENT FOR FEDERAL EMPLOYEE COMPENSATION FOLLOWING HIGHWAY TRUST FUND EXPIRATION.

Time periods.

Section 108(b) of the Surface Transportation Extension Act of 2021 (Public Law 117–44) is amended by striking "that begins" and all that follows through the period at the end and inserting the following: "that begins on—

Ante, p. 386.

"(1) October 1, 2021, and ends on or before the date of enactment of this Act; or

"(2) November 1, 2021, and ends on or before the date of enactment of the Further Surface Transportation Extension Act of 2021.".

SEC. 4. EXTENSION OF EXPENDITURE AUTHORITY FOR THE HIGHWAY TRUST FUND, SPORT FISH RESTORATION AND BOATING TRUST FUND, AND LEAKING UNDERGROUND STORAGE TANK TRUST FUND.

(a) HIGHWAY TRUST FUND.—Section 9503 of the Internal Revenue Code of 1986 is amended—

26 USC 9503.

(1) in subsections (b)(6)(B), (c)(1), and (e)(3) by striking "November 1, 2021" and inserting "December 4, 2021"; and

(2) by striking "Surface Transportation Extension Act of 2021" each place it appears and inserting "Further Surface Transportation Extension Act of 2021".

(b) SPORT FISH RESTORATION AND BOATING TRUST FUND.—Section 9504 of such Code is amended—

(1) in subsection (b)(2) by striking "Surface Transportation Extension Act of 2021" each place it appears and inserting "Further Surface Transportation Extension Act of 2021"; and

(2) in subsection (d)(2) by striking "November 1, 2021" and inserting "December 4, 2021".

26 USC 9508.

(c) LEAKING UNDERGROUND STORAGE TANK TRUST FUND.—Section 9508(e)(2) of such Code is amended by striking "November 1, 2021" and inserting "December 4, 2021".

Effective date.

(d) SPECIAL RULE FOR AMENDMENTS.—On the date of enactment of H.R. 3684 (117th Congress)—

(1) subsections (a), (b), and (c) of this section, the amendments made by such subsections, section 201 of the Surface Transportation Extension Act of 2021 (Public Law 117–44), and the amendments made by such section shall cease to be effective;

(2) the text of the laws amended by subsections (a), (b), and (c) of this section and section 201 of the Surface Transportation Extension Act of 2021 (Public Law 117–44) shall revert back so as to read as the text read on September 30, 2021; and

(3) the amendments made by H.R. 3684 (117th Congress) shall be executed as if this section and section 201 of the Surface Transportation Extension Act had not been enacted.

Ante, p. 386.

(e) CONFORMING AMENDMENT.—Section 201 of the Surface Transportation Extension Act of 2021 (Public Law 117–44) is amended by striking subsection (d).

SEC. 5. PRIOR ENACTED AUTHORIZATION.

If H.R. 3684 (117th Congress) is enacted before the date of enactment of this Act, this Act shall not take effect and the provisions of this Act shall not be executed.

Approved October 31, 2021.

LEGISLATIVE HISTORY—H.R. 5763:

CONGRESSIONAL RECORD, Vol. 167 (2021):
Oct. 28, considered and passed House and Senate.

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